

Form No.HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Case No. W.P No.3533/2014

Bukhtiar Ahmad Sheikh VS Punjab Labour Appellate Tribunal etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary.
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09.12.2016 Mr. Asmat Kamal Khan, Adv. for the Petitioner.
Mian Muhammad Zulqarnain, Adv. for the Respondents.

Through this constitutional petition, the Petitioner has called in question order dated 28.4.2007 passed by Respondent No.2, Punjab Labour Court No.5, Sargodha (Camp at Jhang) (the “Labour Court”) and that of judgment dated 04.06.2013 passed by Member, Punjab Labour Appellate Tribunal, Lahore (the “PLAT”), whereby petitioner’s grievance petition and appeal respectively were dismissed.

2. Brief facts leading to the filing of this constitutional petition are that petitioner employed as Duplicating Machine Operator (Non-Clerical Cadre) in the United Bank Limited, falls within the definition of “Workman” under the provisions of West Pakistan Industrial and Commercial Employment (Standing Orders) Ordinance, 1968 (the “1968 Ordinance”), Industrial Relations Ordinance, 2002 (the “2002 Ordinance”) and other Labour Laws. The

Respondents No.2 to 6 fall within the definition of “Employers” under the provisions of the Ordinance 1968 and the Ordinance 2002. It transpires from record that the Petitioner was charge sheeted against certain allegations of misconduct etc and ultimately was dismissed from service on 19.10.1999 (the “Dismissal Order”). Feeling aggrieved from the said order, the Petitioner filed appeal before the Federal Service Tribunal, Lahore (the “FST”) which was returned to the petitioner on de-nationalization of Bank. Subsequently, the petitioner filed a petition for leave to appeal before the Supreme Court of Pakistan which was disposed, in the presence of the all the parties, after agreeing vide order dated 24.3.2005 (the “Supreme Court Order”), in the following manner:-

- “1. The United Bank Ltd shall consider the cases of the appellants independently to implement the judgment dated 15th December 2000 in letter and spirit, within a period of four weeks.
2. The appellants shall have an opportunity to put forward their view point individually before the respondents on a date which will be fixed for hearing at Lahore during the month of April 2005.
3. The United Bank Ltd shall transmit the result of each case within seven days after its final decision to the Registrar of this Court for our perusal in Chambers.
4. The appellants on having not been satisfied from the order of the Bank, if it not made in accordance with rules, **shall approach this Court for redressal of their grievance by getting their appeals revived in accordance with Rules.**”

In the light of abovesaid guidelines, the Petitioner approached the Respondent Bank by filing a representation, which was not decided and then he filed another representation dated 14.06.2006. Thereafter, the Petitioner served a grievance notice upon the respondents but all his efforts proved abortive. Then the filed a petition under Section 46 of the 2002 Ordinance before the Labour Court/Respondent No. 2 where by the Labour Court by relying on the relevant extract from the Supreme Court Order of Hon'ble Supreme Court of Pakistan adjourned the petition sine die instead of assuming its jurisdiction. The Labour Court while adjourning the petition sine-die also observed that the petitioner at appropriate time can move application for its restoration. Being dissatisfied from the said order of the Labour Court, petitioner filed appeal before the PLAT/Respondent No.1, which was dismissed vide judgment dated 4.6.2013, the impugned judgement. Hence this constitutional petition.

3. Learned counsel for the Petitioner has contended that judgments of both the Labour Court and PLAT are illegal, unjust and unwarranted. The counsel further argued that when cause of action arose on 19.10.1999, the Respondent Bank was a state bank and not privatized, hence, he filed appeal before the FST, which was dismissed. Against the dismissal by the FST, the Petitioner filed the appeal before

the Supreme Court which was disposed by the Supreme Court Order. Thereafter the Bank decided his case on 20 June 2006. The counsel for the Petitioner further argued on 27.06.2016, the Mubeen-ul-Islam vs Federation of Pakistan and others, PLD 2006 SC 602 (the “Mubeen ul Islam case”) was decided wherein it was held that Section 2-A of the Service Tribunal Act, 1973 (the “1973 Act”) was not applicable to the organizations or establishments which have no statutory rules, therefore, the petitioner has left no remedy except to invoke the jurisdiction of the Labour Court. The counsel further argued that the PLAT has wrongly held that the consequences of the Mubeen-ul-Islam case was only applicable to the Government Departments which was ignored by PLAT. Lastly, he argued that the Petitioner being the ex employee of Private Bank has no other remedy except to invoke the remedy under the provisions of the 1968 Ordinance and 2002 Ordinance.

4. On the other hand, learned counsel for the Respondents No.3 to 6 has argued that Supreme Court Order being mandatory in nature could not be ignored by the Labour Court as well as by the PLAT, hence both the learned courts have rightly advised the Petitioner to approach the Hon’ble Supreme Court of Pakistan; that the order passed by Hon’ble Supreme Court of Pakistan was an

order in *personam* and thus was binding upon the parties thereto. In support of his contentions he has placed reliance on MUHAMMAD YUSUF VS THE CHIEF SETTLEMENT AND REHABILITATION COMMISSIONER, PAKISTAN, LAHORE ETC, (PLD 1968 SC 101), PIR BAKHSH REPRESENTED BY HIS LEGAL HEIRS AND OTHERS VS THE CHAIRMAN, ALLOTMENT COMMITTEE AND OTHERS (PLD 1987 SC 145) and ATTA MUHAMMAD and 8 others vs MEMBER, BOARD OF REVENUE/CHIEF SETTLEMENT COMMISSIONER, LAHORE and 5 others (2003 CLC 149). In the above said judgments it has been laid down that Inter-se parties direction in a judgment in *personam* was binding upon the parties which the Authorities were bound to obey and carry out. It was held the legal efficacy of judgment passed in *personam* could neither be stultified nor ignored by the parties, hence. such judgments and directions inter se the parties could not be ignored by invoking judgments and precedents rendered in other cases. Moreover, the Authorities were bound to comply with and give effect to the directions of Supreme Court faithfully which they were bound under Art.190 of the Constitution.

5. Arguments heard and record perused.

6. The nub of the matter before this Court is whether the Respondent No.1/PLAT and Respondent No. 2/Labour Court have rightly dismissed the petition and the appeal of the Petitioner by referring the Supreme Court Order, which was passed in the presence of the parties after agreeing with the disposal of the appeals.

7. In order to examine the outcome of the Supreme Court Order and impugned judgments, this Court will examine the record annexed with the file to show that against the same dismissal order, the Honourable Supreme Court passed the Supreme Court Order, which were again assailed before the Labour Court and PLAT. It is reflected from perusal of record attach with this writ that a charge sheet dated 26.06.1999 was issued by Respondent/UBL to the Petitioner on account of misconduct/embezzlement. Subsequently, the Petitioner was dismissed from service vide dismissal letter dated 19.10.1999. Against the order of his dismissal, the petitioner filed an appeal before learned FST, which was returned vide order dated 1.11.2003 due to privatization of UBL. It is important to note that the FST did not decide the case on merits due to the lack of jurisdiction due to the Section 2-A of the 1973 Act. The judgment dated 1st November 2003 of the FST (Annexure F) clearly held that after privatization of the Respondent Bank, the Appellants including the petitioner cannot

continue their appeals in this Tribunal. The Petitioner assailed the judgment of FST before the Hon'ble Supreme Court of Pakistan, which was disposed of vide order dated 24.03.2005 (Annexure G) after hearing all the parties and agreeing with the disposal. It is important to note that while disposing appeals, the Hon'ble Supreme Court clearly held that;

“Learned counsel for the parties agreed for disposal of above appeals in the following terms:

4. *The appellants on having not been satisfied from the order of the Bank, if it not made in accordance with rules, **shall approach this Court for redressal of their grievance by getting their appeals revived in accordance with Rules.***”

The Hon'ble Supreme Court had decided the appeal with the concurrence of the parties.

8. It has been noted that on 14 June 2006, the Petitioner filed representation before the Respondent Bank (Annexure H) and sent the Grievance Notice to the Bank on 17 July 2006 (Annexure J). The Petitioner being not satisfied with the order of the Bank filed a grievance petition before the Labour Court instead of approaching the Hon'ble Supreme Court of Pakistan in terms of paragraph No.4 of the Supreme Court Order. The Respondent No. 2/Labour Court through its order

dated 28.04.2007 adjourned the grievance petition sine-die in the following manner:-

“So, in the light of the above judgment, the petitioner should approach the Hon’ble Supreme Court of Pakistan as directed in para No.4. The petitioner is being adjourned sine-die and the petitioner at appropriate time can move application for its restoration.”

The Petitioner again, instead of approaching the Hon’ble Supreme Court of Pakistan, filed an appeal against the above order of the Respondent No.2/Labour Court before the Respondent/Punjab Labour Appellate Tribunal, Lahore, which was dismissed vide judgement dated 4.6.2013.

9. In view of the above facts, the Supreme Court Order which was passed in the presence and agreement of the parties being mandatory in nature, could not be ignored by the Labour Court as well as by the PLAT, therefore, both the Courts below have rightly advised the Petitioner to approach the Hon’ble Supreme Court of Pakistan. It is well settled law that when order passed in the presence of the parties, order is an order in personam, is binding upon the parties. In case cited by the counsel of the Petitioner, **PIR BAKHSH REPRESENTED BY HIS LEGAL HEIRS AND OTHERS VS THE CHAIRMAN, ALLOTMENT COMMITTEE AND OTHERS, (PLD 1987 SC 145)** (supra), the Honourable Supreme Court has held that

judgement inter parties and judgments in *personam* could not be reopened in view of bar of *res judicata*.

10. Another judgment is reported in **FARHAT AZEEM V. WAHEED RASUL, (PLD 2000 SC 18)** in which the Hon'ble Supreme Court has held that Supreme Court is the highest judicial forum in the country, it has to interpret the law while hearing appeals from the judgments of the High Court and the subordinate judiciary. Invariably such matters are considered by more than one Judges having long experience and thrash out the proposition brought before them in the light of the chain of judgments rendered on the controversy in issue and ensure that continuity of law is maintained as it is essential for good judicial administration. The subordinate judiciary should always give its utmost respect, regard and consideration to the judgments, decrees, directions and orders of the Supreme Court, for, it is necessary apart from the binding nature of the same for maintaining discipline in all ranks of the judiciary. When the Supreme Court itself gives due consideration to earlier decisions rendered by it, it is not understood as to why the subordinate judiciary in Pakistan should turn a deaf ear to the judgments, awards findings or observations of the Supreme Court. The Courts and authorities subordinate to the Supreme Court are under legal obligation to follow the law laid down by it, and if they consider that the case-law cited before them

is not relevant or applicable to the facts and circumstances of the case they are dealing with, then they should distinguish it with reasons showing application of mind by them. This exercise would enable the party citing the case law to understand as to why the precedents relied upon by it were not followed. Moreover, in **Nazar vs Member Judicial, BOR, (2010 SCMR 1429)**, the Supreme Court held that once matter has been finally adjudicated by Supreme Court then it is binding between the parties.

11. Hence, in the instant case, the matter was heard by the Supreme Court on 24.03.2005 in the presence of the parties after their agreement and if the Petitioner still had any grievance from the Respondent Bank or was not satisfied by the Respondent Bank, then the Petitioner by stricto sensu following the Supreme Court Order should have revived its appeal.

12. It is a settled law that where grievance was an individual grievance and related to satisfaction of claim in full or part, rights of parties thereunder assumed finality and took the colour of past and closed transaction. Based on the principles of **PIR BAKHSH REPRESENTED BY HIS LEGAL HEIRS AND OTHERS VS THE CHAIRMAN, ALLOTMENT COMMITTEE AND OTHERS**, supra the Respondent No.2/Labour Court has rightly adjourned sine die the petition due to the Supreme

Court Order and thereafter the PLAT dismissed in respecting the Supreme Court Order (Para 4). Furthermore, Mubeen-us-Salam case does not render void of its own force its previous order dated 24.03.2005 passed in petitioner's own appeal. Hence the said order still holds the field and is binding upon the parties thereto.

13. There is not illegality in the impugned judgment because it had only followed the Orders of the Supreme Court in letter in spirit by clearly holding that Supreme Court Order must be respected as it clearly provides the remedy of approaching the Honourable Supreme Court in case the petitioner grievance remains un-redressed.

14. The Court does not interfere in the matter where the Courts below are following the Orders of the Supreme Court in *stricto sensu*, being binding on them under Article 189 of the Constitution of Islamic Republic of Pakistan, 1973. As the Respondent No. 1 has rightly observed that being specific, the Hon'ble Supreme Court's Order dated 24 March 2005 must be given due deference notwithstanding the general rule laid down in the Mubeen ul Islam case, whereas the ratio of Mubeen ul Islam case would apply only to the employees of an establishment owned by the Government and not be the employees of a privatized establishment like the Respondent Bank. It is also observed that both the Courts below has rightly

declined to hear the grievance of the Petitioner arising out of dismissal of 19 October 1999 due to the forum given by the Supreme Court in the agreement and presence of both the parties. Upshot of the above discussion is that the Petitioner still has a remedy to approach the Supreme Court to revive his appeal, if his grievance has still not been redressed. Disposed of.

(JAWAD HASSAN)
JUDGE

ZAHOR